Amendment of section 263.

73. In section 263 of the Income-tax Act, in sub-section (1),—

(*a*) after the words "Assessing Officer" wherever they occur, the words "or the Transfer Pricing Officer, as the case may be," shall be inserted;

(*b*) for the words "including an order enhancing or modifying the assessment, or cancelling the assessment and directing a fresh assessment", the following shall be substituted, namely:—
"including,—
(*i*) an order enhancing or modifying the assessment or cancelling the assessment and directing a fresh assessment; or
(*ii*) an order modifying the order under section 92CA; or
(*iii*) an order cancelling the order under section 92CA and directing a fresh order under the said section.";

(*c*) in *Explanation 1*, in clause (*a*), after sub-clause (*ii*), the following sub-clause shall be inserted, namely:—
"(*iii*) an order under section 92CA by the Transfer Pricing Officer;";

(*d*) after *Explanation 2*, the following *Explanation* shall be inserted, namely:—
'*Explanation 3*.—For the purposes of this section, "Transfer Pricing Officer" shall have the same meaning as assigned to it in the *Explanation* to section 92CA.'.